

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL
FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL
APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE
ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-
NEVER-OCCURRED**

Never-Filed Supplemental Briefing Order

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** June 23, 2026

Following the grant of panel rehearing, the Court directs Open Grid and DOE to submit a joint supplemental brief. The submission shall help the panel explain the corrected record without revealing an authentic operational or human-safety field. It must remain within the assumptions stated in the February 10 isolation notice.

The parties shall address whether the page-linked worksheet supplies a safe public explanation for disputed functional correlations, how the seventeen-passage supplemental release bears on the remaining segregability findings, and why each controlled passage requires the particular access restriction selected. They may propose language clarifying the narrow treatment of decision-tree implementation relations under 7(E).

The Court requests advocacy, not new evidence. No additional record, declaration, search result, technical detail, or changed arithmetic may be introduced. The prior opinion and judgment remain withdrawn, mandate remains stayed, and this order does not suggest how the panel will resolve the reheard appeal.

Filing and Access Directions

The joint submission is due July 2, 2026. The Court orders two equal ten-page counterparts titled Never-Filed Public Redacted Joint Supplemental Brief and Never-Filed Sealed Joint Supplemental Brief. The public version shall contain the parties' complete legal positions, record arithmetic, authorities, and requested treatment, using only the approved fictional category notices where a controlled relation is discussed.

This order activates the February 12 motion and certificate's conditional coverage for the fourth, court-ordered supplemental pair. That prospective coverage is a prerequisite, not automatic access. Eligibility listed in the certificate is not a grant. Lodging or viewing the sealed counterpart requires a new disclosure-specific session grant for this exact pair and resolved pack closure, followed by verification of document identity, content-addressed path, digest, byte size, readability, and page count.

The public and sealed versions must have equal pagination and corresponding subjects but independent prose. Public notice of the ordered pair and the public counterpart shall remain available. The controlled form may use only the six inert labels. It may not include a real value, instruction, identity, location, technical mechanism, or contact route.

No reply will be accepted and no further argument will be scheduled unless the Court orders otherwise. Service shall occur through the isolated exercise system.

Questions Presented on Rehearing

First, the parties should identify representative, nonsecret reasoning that distinguishes a field's actual function from a caption or neighboring administrative sentence. Their submission should explain how the corrected record permits judicial verification rather than treating worksheet completion as self-proving.

Second, the parties should reconcile the release of seventeen passages across eleven existing images with the conclusion that every remaining meaningful portion is exempt. The explanation should preserve the exact distribution of six double-passage images and five single-passage images and should distinguish a replacement image from a new source page.

Third, the parties should describe how public counterparts, passage-specific findings, finite duration, verified grants, and revocation implement the access decision. They should keep the legal justification for closure distinct from the mechanics that enforce an already justified restriction.

The panel will consider these questions under the authorities already briefed. The order neither narrows nor expands the possible disposition and must not be cited as an indication that affirmance, modification, or remand will follow.

Entered by Judges Vale, Quill, and Reed on June 23, 2026. Teren Wye shall serve all fictional counsel and preserve the isolated docket boundary.